

show that the vendor is selling or receiving the purchase-money in the capacity in which he is empowered to do so; and where a person was both executrix and trustee, and as such executrix and trustee had power to carry out a transaction which she purported to carry out as a trustee in which capacity she had not the power, it was held that the transaction was validly effectuated (*d*).]

* 30. **Receipts of executors.**—As *executors* are to [*477] a certain extent invested with the character of trustees, it may be proper to introduce a few remarks upon their powers in disposing of the assets.¹

Power to sell or mortgage.—On the death of a testator the personal estate vests wholly in the executor, and to enable him to execute the office with facility, the law permits him, with or without the concurrence of any co-executor (*a*), to sell or even to mortgage (*b*), by actual assignment or by equitable deposit (*c*), with or without power of

[(*d*) *West of England and South Wales District Bank v. Murch, ubi supra.*]

(*a*) *Scott v. Tyler*, 2 Dick. 725, *per* Lord Thurlow; *Smith v. Everett*, 27 Beav. 448; *Shep. Touch.* 484; *Murrell v. Cox and Pitt*, 2 Vern. 570; *Fellows v. Mitchell*, 2 Vern. 515; *Doe v. Stace*, 15 M. & W. 623; *Dyer*, 23, a; and see *Sneesby v. Thorne*, 7 De G. M. & G. 399.

(*b*) *Bonney v. Ridgard*, 1 Cox, 145, see 148; *Scott v. Tyler*, 2 Dick. 727, *per* Lord Thurlow; *Mead v. Orrery*,

3 Atk. 240, *per* Lord Hardwicke; *Andrew v. Wrigley*, 4 B. C. C. 138, *per* Lord Alvanley; *M'Leod v. Drummond*, 17 Ves. 154, *per* Lord Eldon; *Keane v. Roberts*, 4 Mad. 357, *per* Sir J. Leach; and see *Humble v. Bill*, 2 Vern. 444; *Sanders v. Richards*, 2 Coll. 568; *Miles v. Durnford*, 2 De G. M. & G. 641.

(*c*) *Scott v. Tyler*, 2 Dick. 725, *per* Lord Thurlow; and see *M'Leod v. Drummond*, 14 Ves. 360; *S. C.* 17 Ves. 167; *Ball v. Harris*, 8 Sim. 485.

¹ *Executors' receipts.*—An executor can do alone many things which a trustee may not; *Shaw v. Spencer*, 100 Mass. 392; *Field v. Schieffelin*, 7 Johns. Ch. 150; *Tyrrell v. Morris*, 1 Dev. & B. Eq. 559; *Petrie v. Clark*, 11 S. & R. 377. If there is a misapplication of the purchase-money, the remedy is against the executor; *Penn. Ins. Co. v. Austin*, 42 Pa. St. 257. In case of fraud by executors, the purchaser has no protection; *Wilson v. Doster*, 7 Ired. Eq. 231; *Williamson v. Bank*, 7 Ala. 906; *Williamson v. Morton*, 2 Md. Ch. 94; *Joyner v. Conyers*, 6 Jones Eq. 78; *Pendleton v. Fay*, 2 Paige, 202; *Austin v. Willson*, 21 Ind. 252; *Champlin v. Haight*, 10 Paige, 274. Although an executor gives a bond, yet he does not hold estate funds in his own right; *Atkinson v. Atkinson*, 8 Allen, 15; *Barker v. Barker*, 14 Wis. 131; neither can he receive nor receipt for funds until he has qualified; *Luscomb v. Ballard*, 5 Gray, 403.